

Amar Nath Yadav v. State of U.P.

High Court of Judicature at Allahabad · Division Bench · 13 February 2023 · WRIT - C No. 2877 of 2023 · **Writ disposed; recovery withdrawn and the cause of action did not survive.**

HEADNOTE

A writ against a Purvanchal Vidyut Vitran Nigam demand notice was disposed of after the Executive Engineer recorded that the recovery proceeding had been withdrawn. The cause of action did not survive. The licensee was left at liberty to proceed afresh only by the procedure under clauses 6.8 and 8.1 of the Electricity Supply Code, 2005.

FACTUAL SUMMARY

Amar Nath Yadav challenged, in a writ petition, demand notice no. 510 dated 29 January 2022 of the Executive Engineer, Purvanchal Vidyut Vitran Nigam Ltd., Prayagraj, for Rs.2,18,213. On 28 January 2023 a Division Bench stayed recovery on that notice and adjourned the case for instructions. On 13 February 2023 counsel for the Nigam produced the Executive Engineer's letter of 30 January 2023 to the Additional District Officer (Finance and Revenue), Kaushambi, stating that proceedings on demand notice no. 6495 dated 25 August 2022 had already been withdrawn.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.8

Fresh proceeding after withdrawal of recovery

HOLDING

Withdrawal of the recovery proceeding left no surviving cause of action, and the writ petition was disposed of. The licensee may proceed afresh only by the procedure under clause 6.8 of the Electricity Supply Code, 2005.

¶ 2

HOLDING-UNIT · UP-2005::8.1

Fresh proceeding under clause 8.1

HOLDING

The licensee may proceed afresh only by the procedure under clause 8.1 of the Electricity Supply Code, 2005.

¶ 2

PRINCIPLE TAGS

6.8-procedure-mandatory On disposing the writ because the recovery proceeding stood withdrawn, the Court recorded that any further proceeding by the licensee must follow the procedure under clause 6.8 of the Electricity Supply Code, 2005, and clause 8.1. ¶ 2

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — VALIDITY OF DEMAND NOTICE NO. 510 DATED 29.01.2022 FOR RS.2,18,213.

The writ was disposed of on the licensee's statement that the recovery proceeding stood withdrawn. ¶ 2

NOT DECIDED — WHETHER WITHDRAWN DEMAND NOTICE NO. 6495 DATED 25.08.2022 IS THE SAME DEMAND AS IMPUGNED NOTICE NO. 510 DATED 29.01.2022.

The instruction placed on record referred to notice no. 6495, while the petition challenged notice no. 510. ¶ 2

